

The Court is disinclined to allow further inquiry into the following: As to categories one (employment) and two (English proficiency), the Court finds his prior responses sufficient. (See, e.g., Vol.2, Depo., 137:10-24 [as to one].) As to categories three (crim. history), the Court finds that response that he has no felonies is sufficient. (Vol.1, Depo., 59:21-62:10.) The Court would find insufficient basis for further inquiry as to category four (immigration status). (Evid. Code, § 351.2 [“ . . . nor shall discovery into a person’s immigration status be permitted.”].) As to category eight (roofing paper), the Court would find the prior answers sufficient. (E.g., Depo., 69:8-25.)

However, the Court would allow additional inquiry into the following: As to category five (technical rehab), there were improper objections and the Court sees no basis for the instruction not to answer. Similarly, as to category six (understanding of injuries), the instruction not to answer is not well founded. The inquiry is as to discoverable information, and the assessment of attorney-client and work-product privileges appear improper for this area of inquiry. Finally, again similarly, as to category seven (exact location of accident), the inquiry seek discoverable information. The Court would allow further inquiry as to these topics.

14. *Avila v. California Premier Roofscapes, Inc., et al*, Case No. CIVSB2425309
Defendants’ Motion to Compel Response to Requests for Production, Set One
Defendants’ Motion to Compel Response to Special Interrogatories, Set Two
6/4/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would find the motions **MOOT**.

Analysis

Defendants move to compel responses from Plaintiff to Requests for Production, Set One (RFP1) and Special Interrogatories, Set 2 (SROG2). At issue are RFP1, numbers 1-5 and SROG2, numbers 27-53.

Relevant here, Defendants served the discovery on November 20, 2025. The discovery response deadline was continued by agreement to January 9, 2026. On January 5, 2026, when Plaintiff asked for an additional extension, Defendants refused. Thus, to preserve objections, Plaintiff provided objection-only responses on January 9, 2026. These motions to compel were filed on February 6, 2026, but on or about March 31, 2026, Plaintiff served verified supplemental responses. (Rafael Decl., ¶12 & Exh. E.) Thus substantive, supplemental responses have been provided and the motions are moot.

As to sanctions, the Court would decline to impose them. It appears that there is substantial justification in that Plaintiff sought extension of the deadline before providing objection-only

responses and was intent on providing substantive responses. Moreover, the Court notes that no separate statements were provided. (Cal. Rules of Court, rule 3.1345(a)(2) & (3) [requiring separate statement when compelling further responses].) Here, it appears that movants moved as if there had been no prior responses. While the initial responses were couched as objection-only, they still existed.

TENTATIVE